

**UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH DAKOTA
WESTERN DIVISION**

UNITED STATES OF AMERICA, Plaintiff, vs. RICHARD WAYNE GRAY, Defendant.	5:24-CR-50176-CCT FINAL INSTRUCTIONS TO THE JURY
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VERDICT FORM

FINAL INSTRUCTION NO. 1 – INTRODUCTION

Members of the jury, the written instructions I gave you at the beginning of the trial remain in effect. I now give you some additional instructions.

The instructions I am about to give you, as well as the preliminary instructions given to you at the beginning of the trial, are in writing and will be available to you in the jury room. *All* instructions, whenever given and whether in writing or not, must be followed. This is true even though some of the instructions I gave you at the beginning of the trial are not repeated here.

FINAL INSTRUCTION NO. 2 – TRANSPORTATION OF A MINOR WITH INTENT
TO ENGAGE IN CRIMINAL SEXUAL ACTIVITY

For you to find Richard Wayne Gray guilty of “transportation of a minor with intent to engage in criminal sexual activity” as charged in Count 1 of the Indictment, the government must prove the following essential elements beyond a reasonable doubt:

One, that on or about between June 1, 2022, and June 8, 2022, Richard Wayne Gray knowingly transported J.A. across a state line;

As used in this instruction, an act is done “knowingly” if the defendant realized what he was doing and did not act through ignorance, mistake, or accident. You may consider evidence of the defendant’s acts and words, along with all the evidence, in deciding whether the defendant acted knowingly. The government is not required to prove the defendant knew his acts or omission were unlawful.

Two, that Richard Wayne Gray transported J.A. with the intent J.A. engage in any sexual activity for which any person can be charged with a criminal offense;

Intent or knowledge may be proved like anything else. You may consider any statements made and acts done by the defendant, and all the facts and circumstances in evidence which may aid in a determination of the defendant’s knowledge or intent. You may, but are not required to, infer that a person intends the natural and probable consequences of acts knowingly done or knowingly omitted.

“Intent” can be proven if engaging in a sexual act with the minor was one of the purposes motivating the defendant to cross state lines, even if the sexual act is not the sole or dominant purpose for the trip, so long as it is more than incidental.

The government does not have to prove that the unlawful sexual activity actually took place, instead the government must prove that the defendant traveled across state lines with the intent to engage in such conduct.

Three, that J.A. was under the age of 18 years; and

Four, that felony sexual contact with a child under sixteen is a crime under laws of the State of South Dakota.

Pursuant to South Dakota Codified Law § 22-22-7, “Any person, sixteen years of age or older, who knowingly engages in sexual contact with another person, other than that person’s spouse if the other person is under the age of sixteen years” is guilty of a crime.

Pursuant to South Dakota Codified Law § 22-22-7.1, “sexual contact” means any touching, not amounting to rape, whether or not through clothing or other covering, of the breasts of a female or the genitalia or anus of any person with the intent to arouse or gratify the sexual desire of either party.”

For you to find Mr. Gray guilty of the offense charged in Count 1 of the Indictment, the government must prove all four of the essential elements beyond a reasonable doubt. Otherwise, you must find Mr. Gray not guilty of the offense charged in Count 1 of the Indictment.

FINAL INSTRUCTION NO. 3 – AGGRAVATED SEXUAL ABUSE WITH
CHILDREN

For you to find Richard Wayne Gray guilty of “aggravated sexual abuse with children” as charged in Count 2 of the Indictment, the government must prove the following essential elements beyond a reasonable doubt:

One, that on or about between June 1, 2022, and June 8, 2022, Richard Wayne Gray did cross a state line with intent to engage in a sexual act with J.A.;

Intent or knowledge may be proved like anything else. You may consider any statements made and acts done by the defendant, and all the facts and circumstances in evidence which may aid in a determination of the defendant’s knowledge or intent. You may, but are not required to, infer that a person intends the natural and probable consequences of acts knowingly done or knowingly omitted.

“Intent” can be proven if engaging in a sexual act with the minor was one of the purposes motivating the defendant to cross state lines, even if the sexual act is not the sole or dominant purpose for the trip, so long as it is more than incidental.

The government does not have to prove that the unlawful sexual activity actually took place, instead the government must prove that the defendant traveled across state lines with the intent to engage in such conduct.

Two, that Richard Wayne Gray knowingly engaged or attempted to engage in a sexual act with J.A.;

The term “sexual act” for purposes of Count 2 means contact between the penis and the vulva or the penis and the anus; or the penetration, however slight, of the anal or genital opening of another by a hand or finger or by any object, with an intent to abuse, humiliate, harass, degrade, or arouse or gratify the sexual desire of any person; or the intentional touching, not through the clothing, of the genitalia of another person who has not attained the age of 16 years with an intent to abuse, humiliate, harass, degrade, or arouse or gratify the sexual desire of any person.

A person may be found guilty of an attempt to commit an offense if he intended to engage in an offense and voluntarily and intentionally

carried out some act which was a substantial step towards engaging in the offense.

A substantial step must be something more than mere preparation yet may be less than the last act necessary before the actual commission of the substantive offense. In order for behavior to be punishable as an attempt, it need not be incompatible with innocence, yet it must be necessary to the consummation of the offense and be of such a nature that a reasonable observer, viewing it in context, would conclude beyond a reasonable doubt that it was undertaken in accordance with a design to commit the substantive offense.

As used in this instruction, an act is done “knowingly” if the defendant realized what he was doing and did not act through ignorance, mistake, or accident. You may consider evidence of the defendant’s acts and words, along with all the evidence, in deciding whether the defendant acted knowingly. The government is not required to prove the defendant knew his acts or omission were unlawful.

And *Three*, that at the time of the offense, J.A. had not attained the age of 12 years.

For you to find Mr. Gray guilty of the offense charged in Count 2 of the Indictment, the government must prove all three of the essential elements beyond a reasonable doubt. Otherwise, you must find Mr. Gray not guilty of the offense charged in Count 2 of the Indictment.

FINAL INSTRUCTION NO. 4 – DEFENDANT’S PRIOR SIMILAR ACTS

You have heard evidence that the defendant may have previously committed other offenses of sexual assault. The defendant is not charged with these other offenses. You may consider this evidence only if you unanimously find it is more likely than not true. You decide that by considering all of the evidence and deciding what evidence is more believable. This is a lower standard than proof beyond a reasonable doubt.

If you find that these offenses have not been proved, you must disregard them. If you find that these offenses have been proved, you may consider them to help you decide any matter to which they are relevant. You should give them the weight and value you believe they are entitled to receive. You may consider the evidence of such other acts of sexual assault for its tendency, if any, to show the defendant’s propensity to engage in sexual assault, as well as its tendency, if any, to determine whether the defendant committed the acts charged in the Indictment.

Remember, the defendant is on trial only for the crimes charged. You may not convict a person simply because you believe he may have committed similar acts in the past.

FINAL INSTRUCTION NO. 5 – IMPEACHMENT BY PRIOR CONVICTION

You have heard evidence that Richard Wayne Gray was previously convicted of certain crimes. You may use that evidence only to help you decide whether to believe his testimony and how much weight to give it. The fact that he was previously convicted of a crime does not mean that he committed the crime charged here, and you must not use that evidence as any proof of the crime charged in this case.

FINAL INSTRUCTION NO. 6 – EXPERT WITNESSES

You have heard testimony from persons described as experts. Persons who, by knowledge, skill, training, education or experience, have become an expert in some field may state their opinions on matters in that field and may also state the reasons for their opinion.

Expert testimony should be considered just like any other testimony. You may accept or reject it, and give it as much weight as you think it deserves, considering the witness' education and experience, the soundness of the reasons given for the opinion, the acceptability of the methods used, and all the other evidence in the case.

FINAL INSTRUCTION NO. 7 – IMPEACHMENT

In Preliminary Instruction No. 7, I instructed you generally on the credibility of witnesses. I now give you this further instruction on how the credibility of a witness can be “impeached” and how you may treat certain evidence.

A witness may be discredited or impeached by contradictory evidence; by a showing that the witness testified falsely concerning a material matter; or by evidence that at some other time the witness has said or done something, or has failed to say or do something, that is inconsistent with the witness’s present testimony. If earlier statements of a witness were admitted into evidence, the statements were not admitted to prove that the contents of those statements are true. Instead, you may consider those earlier statements only to determine whether you think they are consistent or inconsistent with the trial testimony of the witness and, therefore, whether they affect the credibility of that witness.

If you believe that a witness has been discredited or impeached, it is your exclusive right to give that witness’s testimony whatever weight, if any, you think it deserves.

Your decision on the facts of this case should not be determined by the number of witnesses testifying for or against a party. You should consider all the facts and circumstances in evidence to determine which of the witnesses you choose to believe or not believe. You may find that the testimony of a smaller number of witnesses on one side is more credible than the testimony of a greater number of witnesses on the other side.

FINAL INSTRUCTION NO. 8 – PRESUMPTION OF INNOCENCE AND BURDEN
OF PROOF

The presumption of innocence means that the defendant is presumed to be absolutely not guilty.

- This presumption means that you must put aside all suspicion that might arise from the defendant's arrest, the charges, or the fact that he is here in court.
- This presumption remains with the defendant throughout the trial.
- This presumption is enough, alone, for you to find the defendant not guilty, unless the government proves, beyond a reasonable doubt, all of the elements of the offense charged against him.

The burden is always on the government to prove guilt beyond a reasonable doubt.

- This burden never, ever shifts to the defendant to prove his innocence.
- This burden means that the defendant does not have to call any witnesses, produce any evidence, cross-examine the government's witnesses, or testify.
- This burden means that, if the defendant does not testify, you must not consider that fact in any way, or even discuss it, in arriving at your verdict.

This burden means that you must find the defendant not guilty of the offense charged against him, unless the government proves beyond a reasonable doubt that he has committed each and every element of that offense.

FINAL INSTRUCTION NO. 9 – REASONABLE DOUBT

A reasonable doubt is a doubt based upon reason and common sense.

- A reasonable doubt may arise from evidence produced by the government or the defendant, keeping in mind that the defendant never, ever has the burden or duty to call any witnesses or to produce any evidence.
- A reasonable doubt may arise from the government's lack of evidence.

The government must prove the defendant's guilt beyond a reasonable doubt.

- Proof beyond a reasonable doubt requires careful and impartial consideration of all the evidence in the case before making a decision.
- Proof beyond a reasonable doubt is proof so convincing that you would be willing to rely and act on it in the most important of your own affairs.

The government's burden is heavy, but it does not require proof beyond all possible doubt.

FINAL INSTRUCTION NO. 10 – DUTY TO DELIBERATE

A verdict must represent the careful and impartial judgment of each of you. Before you make that judgment, you must consult with one another and try to reach agreement if you can do so consistent with your individual judgment.

- If you are convinced that the government has not proved beyond a reasonable doubt that the defendant is guilty, say so.
- If you are convinced that the government has proved beyond a reasonable doubt that the defendant is guilty, say so.
- Do not give up your honest beliefs just because others think differently or because you simply want to be finished with the case.
- On the other hand, do not hesitate to re-examine your own views and to change your opinion if you are convinced that it is wrong.
- It is your duty, as jurors, to discuss this case with one another in the jury room. You should try to reach agreement if you can do so without violence to individual judgment, because a verdict—whether guilty or not guilty—must be unanimous.
- Each of you must make your own conscientious decision, but only after you have considered all the evidence, discussed it fully with your fellow jurors, and listened to the views of your fellow jurors.
- You can only reach a unanimous verdict if you discuss your views openly and frankly, with proper regard for the opinions of others, and with a willingness to re-examine your own views.
- Remember that you are not advocates, but judges of the facts, so your sole interest is to seek the truth from the evidence.
- The question is never who wins or loses the case, because society always wins, whatever your verdict, when you return a just verdict based solely on the evidence, reason, your common sense, and these Instructions.

- You must consider all the evidence bearing on each element before you.
- Take all the time that you feel is necessary.

Remember that this case is important to the parties and to the fair administration of justice, so do not be in a hurry to reach a verdict just to be finished with the case.

FINAL INSTRUCTION NO. 11 – DUTY DURING DELIBERATIONS

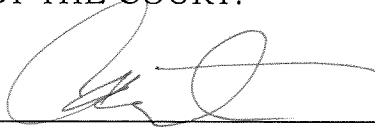
You must follow certain rules while conducting your deliberations and returning your verdict:

- Select a foreperson to preside over your discussions and to speak for you here in court.
- Do not consider punishment in any way in deciding whether the defendant is guilty or not guilty. If the defendant is guilty, I will decide what the sentence should be.
- Communicate with me by sending me a note through a Court Security Officer (CSO). The note must be signed by one or more of you. Remember that you should not tell anyone, including me, how your votes stand. I will respond as soon as possible, either in writing or orally in open court.
- Base your verdict solely on the evidence, reason, your common sense, and all Instructions, whether written or not. Again, nothing I have said or done was intended to suggest what your verdict should be—that is entirely for you to decide.
- Reach your verdict without discrimination. In reaching your verdict, you must not consider the defendant's race, color, religious beliefs, national origin, or sex. You are not to return a verdict for or against the defendant unless you would return the same verdict without regard to his race, color, religious beliefs, national origin, or sex.
- Complete the Verdict Form. The foreperson must bring the signed verdict form to the courtroom when it is time to announce your verdict.
- When you have reached a verdict, the foreperson will advise the CSO that you are ready to return to the courtroom.

Good luck with your deliberations.

Dated July 25, 2025.

BY THE COURT:

A handwritten signature in black ink, appearing to read 'C. Theeler', is written over a horizontal line.

CAMELA C. THEELER
UNITED STATES DISTRICT JUDGE